

- **UNCLOS (Convenção das Nações Unidas sobre o Direito do Mar):** A UNCLOS é uma Convenção que busca estabelecer um quadro legal para a gestão dos oceanos e dos recursos marinhos. Ela define direitos e responsabilidades dos Estados em relação ao uso dos oceanos, incluindo a delimitação de Zonas Econômicas Exclusivas (ZEEs) e a exploração de recursos naturais no fundo do mar. Para a questão da exploração do Ártico, a UNCLOS é fundamental, pois fornece a base legal para que os países façam reivindicações sobre áreas marítimas. O entendimento da UNCLOS é essencial para evitar disputas territoriais e garantir que a exploração de recursos no Ártico seja feita de maneira pacífica e cooperativa.

PERGUNTAS QUE DEVEM SER RESPONDIDAS PELO COMITÊ:

1. Como as definições de fronteiras marítimas podem ser aplicadas em um ambiente em constante mudança como o Ártico?

Uma resposta possível:

UNCLOS, Article 76

The fixed points comprising the line of the outer limits of the continental shelf on the seabed, drawn in accordance with paragraph 4 (a)(i) and (ii), either shall not exceed 350 nautical miles from the baselines from which the breadth of the territorial sea is measured or shall not exceed 100 nautical miles from the 2,500 metre isobath, which is a line connecting the depth of 2,500 metres.

The coastal State shall delineate the outer limits of its continental shelf, where that shelf extends beyond 200 nautical miles from the baselines from which the breadth of the territorial sea is measured, by straight lines not exceeding 60 nautical miles in length, connecting fixed points, defined by coordinates of latitude and longitude.

2. Quais são as limitações da UNCLOS para lidar com as questões específicas do Ártico? (exemplo: Definição de águas interiores, mar

territorial e zona econômica exclusiva em regiões com gelo marinho)

Uma resposta possível:

Na seção 8 (artigo 234) do UNCLOS, o qual trata de áreas cobertas por gelo, consta o seguinte:

Países que possuem litoral marítimo têm o direito de adotar e fazer cumprir leis e dispositivos legais para a prevenção, redução e controle da poluição marítima produzidas por navios em áreas cobertas por gelo no interior da ZEE (Zona Econômica Exclusiva), onde particularmente condições climáticas severas com a presença de gelo cobrindo tais áreas na maior parte do ano cria obstruções ou excepcionais dificuldades à navegação, e a poluição do ambiente marinho normalmente causa danos ou perturbações irreversíveis no equilíbrio ecológico. Essas leis e dispositivos legais têm que viabilizar tanto a navegação quanto a proteção e preservação do meio-ambiente marinho.

3. Como resolver as problemáticas jurídicas concernentes às Rotas Marítimas do Ártico?

Uma resposta possível:

UNCLOS

Article 36

High seas routes or routes through exclusive economic zones through straits used for international navigation

This Part does not apply to a strait used for international navigation if there exists through the strait a route through the high seas or through an exclusive economic zone of similar convenience with respect to navigational and hydrographical characteristics; in such routes, the other relevant Parts of this Convention, including the provisions regarding the freedoms of navigation and overflight, apply.

SECTION 2. TRANSIT PASSAGE

Article 37

Scope of this section

This section applies to straits which are used for international navigation between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone.

Article 38

Right of transit passage

1. *In straits referred to in article 37, all ships and aircraft enjoy the right of transit passage, which shall not be impeded; except that, if the strait is formed by an island of a State bordering the strait and its mainland, transit passage shall not apply if there exists seaward of the island a route through the high seas or through an exclusive economic zone of similar convenience with respect to navigational and hydrographical characteristics.*

2. *Transit passage means the exercise in accordance with this Part of the freedom of navigation and overflight solely for the purpose of continuous and expeditious transit of the strait between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone. However, the requirement of continuous and expeditious transit does not preclude passage through the strait for the purpose of entering, leaving or returning from a State bordering the strait, subject to the conditions of entry to that State.*

3. *Any activity which is not an exercise of the right of transit passage through a strait remains subject to the other applicable provisions of this Convention.*

Article 39

Duties of ships and aircraft during transit passage

1. *Ships and aircraft, while exercising the right of transit passage, shall:*

- (a) *proceed without delay through or over the strait;*
- (b) *refrain from any threat or use of force against the sovereignty, territorial integrity or political independence of States bordering the strait, or in any other manner in violation of the principles of international law embodied in the Charter of the United Nations;*
- (c) *refrain from any activities other than those incident to their normal modes of continuous and expeditious transit unless rendered necessary by force majeure or by distress;*
- (d) *comply with other relevant provisions of this Part.*

2. *Ships in transit passage shall:*

- (a) *comply with generally accepted international regulations, procedures and practices for safety at sea, including the International Regulations for Preventing Collisions at Sea;*
- (b) *comply with generally accepted international regulations, procedures and practices for the prevention, reduction and control of pollution from ships.*

3. *Aircraft in transit passage shall:*

- (a) *observe the Rules of the Air established by the International Civil Aviation Organization as they apply to civil aircraft; state aircraft will normally comply with such safety measures and will at all times operate with due regard for the safety of navigation;*
- (b) *at all times monitor the radio frequency assigned by the competent internationally designated air traffic control authority or the appropriate international distress radio frequency.*

Article 40

Research and survey activities

During transit passage, foreign ships, including marine scientific research and hydrographic survey ships, may not carry out any research or survey activities without the prior authorization of the States bordering straits.

Article 41

Sea lanes and traffic separation schemes in straits used for international navigation

1. *In conformity with this Part, States bordering straits may designate sea lanes and prescribe traffic separation schemes for navigation in straits where necessary to promote the safe passage of ships.*

2. *Such States may, when circumstances require, and after giving due publicity thereto, substitute other sea lanes or traffic separation schemes for any sea lanes or traffic separation schemes previously designated or prescribed by them.*

3. *Such sea lanes and traffic separation schemes shall conform to generally accepted international regulations.*

4. *Before designating or substituting sea lanes or prescribing or substituting traffic separation schemes, States bordering straits shall refer proposals to the competent international organization with a view to their adoption. The organization may adopt only such sea lanes and traffic separation schemes as may be agreed with the States bordering the straits, after which the States may designate, prescribe or substitute them.*

5. *In respect of a strait where sea lanes or traffic separation schemes through the waters of two or more States bordering the strait are being proposed, the States concerned shall cooperate in formulating proposals in consultation with the competent international organization.*

6. *States bordering straits shall clearly indicate all sea lanes and traffic separation schemes designated or prescribed by them on charts to which due publicity shall be given.*

7. *Ships in transit passage shall respect applicable sea lanes and traffic separation schemes established in accordance with this article.*

Article 42

Laws and regulations of States bordering straits relating to transit passage

1. *Subject to the provisions of this section, States bordering straits may adopt*

laws and regulations relating to transit passage through straits, in respect of all or any of the following:

(a) *the safety of navigation and the regulation of maritime traffic, as provided in article 41;*

(b) *the prevention, reduction and control of pollution, by giving effect to applicable international regulations regarding the discharge of oil, oily wastes and other noxious substances in the strait;*

(c) *with respect to fishing vessels, the prevention of fishing, including the stowage of fishing gear;*

(d) *the loading or unloading of any commodity, currency or person in contravention of the customs, fiscal, immigration or sanitary laws and regulations of States bordering straits.*

2. *Such laws and regulations shall not discriminate in form or in fact among foreign ships or in their application have the practical effect of denying, hampering or impairing the right of transit passage as defined in this section.*

3. *States bordering straits shall give due publicity to all such laws and regulations.*

4. *Foreign ships exercising the right of transit passage shall comply with such laws and regulations.*

5. *The flag State of a ship or the State of registry of an aircraft entitled to sovereign immunity which acts in a manner contrary to such laws and regulations or other provisions of this Part shall bear international responsibility for any loss or damage which results to States bordering straits.*

4. Como resolver o entrave entre as reivindicações territoriais dos países e as questões dos direitos humanos e dos indígenas na região?

Uma possível resposta:

UNCLOS, Article 146 Protection of human life

With respect to activities in the Area, necessary measures shall be taken to ensure effective protection of human life. To this end the Authority shall adopt appropriate rules, regulations and procedures to supplement existing international law as embodied in relevant treaties.

5. Quais são os desafios para a construção de um regime jurídico de segurança no Ártico?

Uma possível resposta:

UNCLOS, Article 138

General conduct of States in relation to the Area

The general conduct of States in relation to the Area shall be in accordance with the provisions of this Part, the principles embodied in the Charter of the United Nations and other rules of international law in the interests of maintaining peace and security and promoting international cooperation and mutual understanding.